

Saepius Officio

Answer of the Archbishops of England to the Apostolic Letter of Pope Leo XIII.

Lambeth, February 19, 1897. Frederick of Canterbury and William of York.

Answer of the Archbishops of England to the Apostolic Letter of Pope Leo XIII [Saepius Officio]
Addressed to the whole body of Bishops of the Catholic Church
Give peace in our time, O Lord!

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NOTE. The English is a translation from the Latin published simultaneously with it, and therefore should be read by scholars in connection with it. It is to be noticed that the words "presbyter" and "presbyteratus" are rendered "Presbyter" and "presbyterate" throughout, and "sacerdos" and "sacerdotium" "Priest" and "priesthood," in order to follow the Latin as closely as possible. The only exception is in chap. XVIII, in the quotation from the preface to the Ordinal, where "Bishops, Priests and Deacons", as three orders, are rendered in the Latin "Episcopos, Presbyteros et Diaconos" &c. The side numerals refer to the pages of the Latin letter which it was not possible to make exactly correspond in the English version. Quotations from the Papal letter are made from the authorised English translation published by Messrs. Burns and Oates, London, although its meaning is not always very clear, and the rendering does not always appear to be quite exact.

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ANSWER TO THE APOSTOLIC LETTER OF POPE LEO XIII. ON ENGLISH ORDINATIONS.

TO THE WHOLE BODY OF BISHOPS OF THE CATHOLIC CHURCH FROM THE ARCHBISHOPS OF ENGLAND, GREETING.

I. It is the fortune of our office that often, when we would fain write about the common salvation, an occasion arises for debating some controverted question which cannot be postponed to another time. This certainly was recently the case when in the month of September last there suddenly arrived in this country from Rome a letter, already printed and published, which aimed at overthrowing our whole position as a Church. It was upon this letter that our minds were engaged with the attention it demanded when our beloved brother Edward, at that time Archbishop of Canterbury, Primate of all England and Metropolitan, was in God's providence taken from us by sudden death. In his last written words he bequeathed to us the treatment of the question which he was doubtless himself about to treat with the greatest learning and theological grace. It has therefore seemed good to us, the Archbishops and Primates of England, that this answer should be written in order that the truth on this matter might be made known both to our venerable brother Pope Leo XIIIth, in whose name the letter from Rome was issued, and also to all other bishops of the Christian Church settled throughout the world. II. The duty indeed is a serious one; one which cannot be discharged without a certain deep and strong emotion. But since we firmly believe that we have been truly ordained by the Chief Shepherd to bear a part of His tremendous office in the Catholic Church, we are not at all disturbed by the opinion expressed in that letter. So we approach the task which is of necessity laid upon us "in the spirit of meekness;" and we deem it of greater importance to make plain for all time our doctrine about holy orders and other matters pertaining

to them, than to win a victory in controversy over a sister Church of Christ. Still it is necessary that our answer be cast in a controversial form lest it be said by any one that we have shrunk from the force of the arguments put forward on the other side. III. There was an old controversy, but not a bitter one, with respect to the form and matter of holy orders, which has arisen from the nature of the case, inasmuch as it is impossible to find any tradition on the subject coming

from our Lord or His Apostles, except the well-known example of prayer with laying on of hands. But little is to be found bearing on this matter in the decrees of Provincial Councils, and nothing certain or decisive in those of Œcumenical and General Assemblies. Nor indeed does the Council of Trent, in which our Fathers took no part, touch the subject directly. Its passing remark about the laying on of hands (session XIV On extreme unction, chap. III), and its more decided utterance on the force of the words "Receive the Holy Ghost," which it seems to consider the form of Order (session XXIII On the Sacrament of Order, canon IV), are satisfactory enough to us, and certainly are in no way repugnant to our feelings. There has been a more recent and a more bitter controversy on the validity of Anglican ordinations, into which theologians on the Roman side have thrown themselves with eagerness, and in doing so have, for the most part, imputed to us various crimes and defects. There are others, and those not the least wise among them, who, with a nobler feeling, have undertaken our defence. But no decision of the Roman pontiffs, fully supported by arguments, has ever before appeared, nor has it been possible for us, while we knew that the practice of reordaining our Priests clearly prevailed (though this practice has not been without exception), to learn on what grounds of defect they were reordained. We knew of the unworthy struggles about Formosus, and the long vacillations about heretical, schismatic and simoniacal ordinations. We had access to the letter of Innocent III on the necessity of supplying unction and the Decree of Eugenius IVth for the Armenians; we had the historical documents of the XVIth century, though of these many are unknown even to the present day; we had various decisions of later Popes, Clement XIth and Benedict XIVth, but those of Clement were couched in general terms and therefore uncertain. We had also the Roman Pontifical as reformed from time to time, but, as it now exists, so confusedly arranged as to puzzle rather than enlighten the minds of enquirers. For if any one considers the rite of the ordination of a Presbyter, he sees that the proper laying on of hands stands apart from the utterance of the form. He also cannot tell whether the man, who in the rubrics is called "ordained," has really been ordained, or whether the power, which is given at the end of the office by the words—"Receive the Holy Ghost; whose sins thou shalt have remitted they are remitted unto them, and whose sins thou shalt have retained they are retained"—with the laying on of pontifical hands, is a necessary part of the priesthood (as the Council of Trent seems to teach) 1 or not necessary.

In like manner if anyone reads through the rite of the consecration of an elect as Bishop, he will nowhere find that he is called "Bishop" in the prayers and benedictions referring to the man to be consecrated, or that "Episcopate" is spoken of in them in regard to him.¹ As far as the prayers are concerned the term "Episcopate" occurs for the first time in the Mass during the consecration. From these documents therefore, so obviously discordant and indefinite, no one, however wise, could extract with certainty what was considered by the Roman Pontiffs to be truly essential and necessary to holy orders. IV. Thus our most venerable brother in his letter dated the 13th of September, which begins with the words *Apostolicae curae*, has approached this question after a manner hitherto unexampled, although the arguments urged by him are sufficiently old. Nor

¹"Episcopal chair" is mentioned in the blessing after unction.

do we desire to deny that in entering upon this controversy he has consulted the interests of the Church and of truth in throwing over the very vain opinion about the necessity of the delivery of the “instruments,” which was nevertheless widely accepted by scholastic theologians from the time of S. Thomas Aquinas up to that of Benedict XIVth, and even up to the present day. At the same time he has done well in neglecting other errors and fallacies, which for our part also we shall neglect in this reply, and in regard to which we hope that theologians on the Roman side will follow his example and neglect them for the future. V. His whole judgment therefore hinges on two points, namely, on the practice of the Court of Rome and the form of the Anglican rite, to which is attached a third question, not easy to separate from the second, on the intention of our Church. We will answer at once about the former, though it is, in our opinion, of less importance. VI. As regards the practice of the Roman Court and Legate in the XVIth century, although the Pope writes at some length, we believe that he is really as uncertain as ourselves. We see that he has nothing to add to the documents which are already well known, and that he quotes and argues from an imperfect copy of the letter of Paul IVth *Praeclara carissimi*. Where, for example, are the faculties granted to Pole after 5 August 1553 and before 8 March 1554, which Julius confirms in his letter of the latter date, to be “freely used” in respect to orders received with any irregularity or failure in the accustomed form, but does not detail and define? Without these faculties the “rules of action” to be observed by Pole are imperfectly known. For the distinction made in the letters of both those dates between men

“promoted” and “not promoted,” to which the Pope refers, does not seem to touch the position of the Edwardian clergy, but the case of those who held benefices without any pretence of ordination, as was then often done. Who in fact knows thoroughly either what was done in this matter or on what grounds it was done? We know part; of part we are ignorant. It can be proved however on our side that the work of that reconciliation under Queen Mary (6 July 1553 to 17 Nov. 1558) was in very great measure finished, under royal and episcopal authority, before the arrival of Pole. In the conduct of which business there is evidence of much inconsistency and unevenness. Yet while many Edwardian Priests are found to have been deprived for various reasons, and particularly on account of entering into wedlock, none are so found, as far as we know, on account of defect of Order. Some were voluntarily reordained. Some received anointing as a supplement to their previous ordination, a ceremony to which some of our Bishops at that time attached great importance.² Some, and perhaps the majority, remained in their benefices without reordination, nay were promoted in some cases to new cures. Pole did not return to England after his exile until November 1554, and brought the reconciliation to a conclusion in the fifteen months that followed. The principle of his work appears to have been to recognise the state of things which he found in existence on his arrival, and to direct all his powers towards the restoration of papal supremacy as easily as possible. In this period one man and perhaps a second (for more have not yet been discovered) received new orders under Pole, in the years 1554 and 1557; but it is uncertain in what year each of them began the process of being reordained. At any rate very few were reordained after Pole’s arrival. Others perhaps received some kind of supplement or other to their orders, a record of which is not to be found in our Registers. But if a large number had been reordained under Pole, as papal legate, it would not have been at all surprising, inasmuch as in his twelve legatine constitutions, he added,

²See James Pilkington Exposition on the Prophet Aggeus ii 10—14, published in 1560 (Works, Parker Society, p. 163):—“In the late days of Popery, our holy Bishops called before them all such as were made ministers without such greasing, and blessed them with the Pope’s blessing, anointed them, and then all was perfect: they might sacrifice for quick and dead, but not marry in no case &c.” Cp. Innocent IIIId ep. vii 3 (1204).

as an appendix to the second, the Decree of Eugenius IVth for the Armenians, saying that he did so “inasmuch as very great errors have been committed here (in England) with respect to the doctrine concerning the head of the Church and the Sacraments.”³ And this

he did, not as our Archbishop, but as papal legate. For these constitutions were promulgated at the beginning of the year 1556. But Pole was only ordained Presbyter on the 20th March of the same year; and said Mass for the first time on the following day, being the day on which our lawful Archbishop, Cranmer, was burnt alive; and on the 22nd he was consecrated Archbishop. We quote here the Decree of Eugenius IVth, as reissued by Pole, because it shows how slippery and weak the judgment of the Church of Rome has been in this matter. Further when Pope Leo extols the learning of Pole on this point and writes that it would have been quite irrelevant for the Popes to instruct the legate “as to the conditions necessary for the bestowal of the sacrament of orders,” he seems wholly to forget Eugenius’ Decree, which he has silently thrown over in another part of his letter. (Cp. § 3 and § 5.) “The sixth sacrament is that of Order: the matter of which is the thing by the delivery of which the order is conferred: as for instance the order of the presbyterate is conferred by the porrection of the chalice with wine and the paten with bread: the diaconate by giving of the book of the Gospels: the sub-diaconate by the delivery of the empty chalice with the empty paten on it: and in like manner as regards other orders by the assignment of the things pertaining to their ministries. The form of priesthood is as follows: Receive the power of offering sacrifice in the Church for the living and the dead. In the name of the Father, and of the Son, and of the Holy Ghost. And so as regards the forms of the other orders as is contained at length in the Roman Pontifical. The ordinary minister of this Sacrament is the Bishop: the effect, an increase of grace, so that a man may be a fit minister.” Here the laying on of hands, and the invocation of the Holy Spirit upon the candidates for orders, are not referred to even by a single word. Yet Eugenius, as is clear by his explanation of other Sacraments, is not speaking of things to be supplied by the Armenians, as writers on the Roman side are sometimes fond of saying, but is teaching the Church, as if he were its master, in careful adherence to Aquinas, about what is absolutely necessary to the administration of the Sacraments. So also he writes in the earlier part of his Decree: “All these Sacraments have three requisites for their performance, things as their “matter,” words as their “form,” and the person of the minister who celebrates the Sacrament with the intention of doing what the Church does: and if any of these be absent, the Sacrament is not performed” (Conc. xiv p. 1738). Now in our Church from March 1550 to 1st November 1552, though

generally borrows the language of Aquinas’ Exposition of the articles of the creed and of the Sacraments of the Church (Works vol. viii. pp. 45—9, Venice 1776).

the delivery of the instruments still remained in some degree (i.e., of the chalice with bread in the case of Presbyters, and of the pastoral staff in that of Bishops, and of the Bible in both) yet the forms attached to them had already been changed very nearly into those which now are in use. In the year 1552 the delivery of the chalice and the staff was dropped and that of the Bible alone remained. King Edward died on the 6th July 1553. According to this Decree, then, all these Presbyters ought to have been reordained. But Pole’s opinion scarcely agreed with his practice. Nor does Paul IVth himself, in his Brief Regimini universalis, make any demands as to the form in which Presbyters are ordained, though careful about “properly and rightly ordained” Bishops. (See last page of Appendix.) VII. The second, but scarcely stronger, foundation of the papal opinion about

³See Labbe and Cossart Councils vol. xiv p. 1740, Paris 1672, and vol. xiii p. 538 on the year 1439. Compare also Councils of Great Britain Wilkins vol. iv p. 121 col. 2, which differs slightly and omits the words of the Decree of Eugenius. It is obvious that Eugenius

the practice of his Court appears to be the judgment of Clement XIth in the case of John Gordon, formerly Bishop of Galloway, delivered on Thursday 17th April 1704 in the general Congregation of the Inquisition, or, as it is usually called, the holy Office. We here make a short answer on this case, inasmuch as it cannot be treated clearly on account of the darkness in which the holy Office is enveloped, a darkness insufficiently dispersed by Pope Leo's letter. The fuller treatment of this has been relegated to the Appendix. There are, however, four reasons in particular for considering this case as a weak and unstable foundation for his judgment. In the first place, inasmuch as Gordon himself petitioned to be ordained according to the Roman rite, the case was not heard on the other side. Secondly, his petition had as its basis the old "Tavern fable," and was vitiated by falsehoods concerning our rite. Thirdly, the new documents of "incontestable authenticity" cited by the Pope are still involved in obscurity, and he argues about them as if he were himself uncertain as to their tenor and meaning.⁴ Fourthly, the decree of the Congregation of the holy Office, if it is to be considered to agree with Pope Leo's judgment, can scarcely be reconciled with the reply of the consultors of the holy Office on Abyssinian ordinations, said to have been given about a week before, and often published as authoritative by Roman theologians up to 1893. Therefore all those documents ought to be made public if the matter is to be put on a fair footing for judgment. Finally, it must be noted, that Gordon never went beyond minor

orders in the Roman Church. That is to say, he only did enough to receive a pension for his support from certain benefices.⁵ VIII. The Pope has certainly done well not to rest satisfied with such weak conclusions, and to determine to reopen the question and to treat it afresh; although this would seem to have been done in appearance rather than in reality. For inasmuch as the case was submitted by him to the holy Office, it is clear that it, being bound by its traditions, could hardly have expressed dissent from the judgment, however ill founded, which was passed in the case of Gordon. Further when he touches upon the matter itself and follows the steps of the Council of Trent, our opinion does not greatly differ from the main basis of his judgment. He rightly calls laying on of hands the "matter" of ordination. His judgment on the "form" is not so clearly expressed; but we suppose him to intend to say that the form is prayer or benediction appropriate to the ministry to be conferred, which is also our opinion. Nor do we part company with the Pope when he suggests that it is right to investigate the intention of a Church in conferring holy orders "in so far as it is manifested externally." For whereas it is scarcely possible for any man to arrive at a knowledge of the inner mind of a Priest, so that it cannot be right to make the validity of a Sacrament depend upon it, the will of the Church can both be ascertained more easily, and ought also to be both true and sufficient. Which intention our Church shews generally by requiring a promise from one who is to be ordained that he will rightly minister the Doctrine, Sacraments and Discipline of Christ, and teaches that he who is unfaithful to this promise, may be justly punished. And in our Liturgy we regularly pray for "all Bishops and Curates, that they may both by their life and doctrine set forth (God's) true and lively word, and rightly and duly administer (His) holy Sacraments." But the intention of the Church must be ascertained "in so far as it is manifested externally," that is to say from its public formularies and definite pronouncements which directly touch the main point of the question, not from its omissions and reforms, made as opportunity

⁴Compare the letter "Apostolicae curae," § 5. "It is important to bear in mind that this judgment was in no wise determined by the omission of the tradition of instruments, for in such a case, according to the established custom, the direction would have been to repeat the Ordination conditionally," &c. Which mode of argument differs widely from the quotation of a clearly expressed document. See the Appendix.

⁵See *Le Quien Nullity of Anglican Ordinations*, Paris 1725, ii, pp. 312 and 315.

occurs, in accordance with the liberty which belongs to every Province and Nation—unless it may be that something is omitted which has been ordered in the Word of God, or the known and certain statutes of the universal Church. For if a man assumes the custom of the middle ages and of more recent centuries as the standard, consider, brethren, how clearly he is acting against the liberty of the Gospel and the true character of Christendom. And if we follow this method of judging the validity of Sacraments, we must throw doubt upon all of them,

except Baptism alone, which seems according to the judgment of the universal Church to have its matter and form ordained by the Lord. IX. We acknowledge therefore with the Pope that laying on of hands is the matter of ordination; we acknowledge that the form is prayer or blessing appropriate to the ministry to be conferred; we acknowledge that the intention of the Church, as far as it is externally manifested, is to be ascertained, so that we may discover if it agrees with the mind of the Lord and His Apostles and with the Statutes of the Universal Church. We do not however attach so much weight to the doctrine so often descanted upon by the Schoolmen since the time of William of Auxerre (A.D. 1215), that each of the Sacraments of the Church ought to have a single form and matter exactly defined. Nor do we suppose that this is a matter of faith with the Romans. For it introduces a very great danger of error, supposing any Pope or Doctor, who may have great influence over the men of his own time, should persuade people to acknowledge as necessary this or that form or matter which has not been defined either in the word of God or by the Catholic Fathers or Councils. For, as we have said, Baptism stands alone as a Sacrament in being quite certain both in its form and its matter. And this is suitable to the nature of the case. For,—inasmuch as the Baptism of Christ is the entrance into the Church for all men, and can be ministered by all Christians, if there be a pressing need,—the conditions of a valid Baptism ought to be known to all. As regards the Eucharist (if you set aside, as of less importance, questions about unleavened bread, and salt, about water, and the rest), it has a sufficiently certain matter: but up to the present day a debate is still going on as to its full and essential form. But the matter of Confirmation is not so entirely certain; and we at any rate do not at all think that Christians who have different opinions on the subject should be condemned by one another. The form of Confirmation again is uncertain and quite general, prayer, that is to say, or benediction, more or less suitable, such as is used in each of our Churches. And so with respect to others. X. But this topic of Confirmation requires to be treated rather more at large: for it throws much light on the question proposed by the Pope. He writes truly that laying on of hands is a “matter” “which is equally used for Confirmation.” The matter therefore of Confirmation seems, in his judgment, to be laying on of hands, as we too hold in accordance with Apostolic tradition. But the Roman Church for many centuries has, by a corrupt custom, substituted a stretching out of hands over a crowd of children, or simply “towards those who are to be confirmed”, in the place of laying on of

hands to be conferred on each individual.⁶ The Orientals (with Eugenius IVth) teach that the matter is chrism, and use no laying on of hands in this rite. If therefore the doctrine about a fixed matter and form in the Sacraments were to be admitted, the Romans have ministered Confirmation imperfectly for many centuries past, and the Greeks have none. And not a few amongst the former practically confess the corruption introduced by their Fathers, having joined laying on of hands to

⁶In the so-called “Gelasian” Sacramentary (perhaps of the VIIth century) we still read the rubric In sealing them he lays his hands on them with the following words: then follows the prayer for the sevenfold gift of the Spirit. And in the “ordines” called those of S. Amand, which are perhaps of the VIIIth century, in ch. IV the pontiff touches their heads with his hand. But in the “Gregorian” we read raising his hand over the heads of all he says, etc. In the ordinary editions of the Pontifical we read again: Then stretching out his hands towards those who are to be confirmed he says, etc.

the anointing, as we have learnt, in many places, while a rubric on this point has been added in some Pontificals. And it is fair to ask whether Orientals who are converts to the Roman communion require a second Confirmation? Or do the Romans admit that they, who have changed its matter, have had as good a right to do so as themselves who have corrupted it? Whatever the Pope may answer, it is clear enough that we cannot everywhere insist very strictly on that doctrine about a fixed form and matter; inasmuch as all Sacraments of the Church, except Baptism, would in that way be rendered uncertain. XI. We enquire therefore what authority the Pope has for discovering a definite form in the bestowal of holy orders? We have seen no evidence produced by him except two passages from the determinations of the Council of Trent (Session XXIII. On the Sacrament of Order, canon I., and Session XXII. On the sacrifice of the Mass, canon III.) which were promulgated after our Ordinal was composed, from which he infers that the principal grace and power of the Christian priesthood is the consecration and oblation of the Body and Blood of the Lord. The authority of that Council has certainly never been admitted in our country, and we find that by it many truths were mixed with falsehoods, much that is uncertain with what is certain. But we answer as regards the passages quoted by the Pope, that we make provision with the greatest reverence for the consecration of the holy Eucharist and commit it only to properly ordained Priests and to no other ministers of the Church. Further we truly teach the doctrine of Eucharistic sacrifice and do not believe it to be a “nude commemoration of the Sacrifice of the Cross,” an opinion which seems to be attributed to us by the quotation made from that Council. But we think it sufficient in the Liturgy which we use in celebrating the holy Eucharist,—while lifting up our hearts to the Lord, and when now

consecrating the gifts already offered that they may become to us the Body and Blood of our Lord Jesus Christ,—to signify the sacrifice which is offered at that point of the service in such terms as these. We continue a perpetual memory of the precious death of Christ, who is our Advocate with the Father and the propitiation for our sins, according to His precept, until His coming again. For first we offer the sacrifice of praise and thanksgiving; then next we plead and represent before the Father the sacrifice of the cross, and by it we confidently entreat remission of sins and all other benefits of the Lord’s Passion for all the whole Church; and lastly we offer the sacrifice of ourselves to the Creator of all things which we have already signified by the oblations of His creatures. This whole action, in which the people has necessarily to take its part with the Priest, we are accustomed to call the Eucharistic sacrifice. Further, since the Pope reminds us somewhat severely of “the necessary connection between faith and worship, between the law of believing and the law of praying,” it seems fair to call closer attention, both on your part and ours, to the Roman Liturgy. And when we look carefully into the “Canon of the Mass,” what do we see clearly exhibited there as to the idea of sacrifice? It agrees sufficiently with our Eucharistic formularies, but scarcely or not at all with the determinations of the Council of Trent. Or rather it should be said that two methods of explaining the sacrifice are put forth at the same time by that Council, one which agrees with liturgical science and Christian wisdom, the other which is under the influence of dangerous popular theology on the subject of Eucharistic propitiation. Now in the Canon of the Mass the sacrifice which is offered is described in four ways. Firstly it is a “sacrifice of praise,”⁷ which idea runs through the whole action and so to say supports it and makes it all of a piece. Secondly it is

⁷“Sacrifice of praise”, that is a Eucharistic sacrifice, like the peace-offerings and thank-offerings of the Old Testament, the ritual peculiarity of which was that the man who offered was a partaker with God. “Sacrifice of praise” is the expression of the old Latin version: see the Lyons Pentateuch; “Offering of thanksgiving” is from that of St. Jerome (Lev. vii 12, 13). Hence in our Liturgy both are united: “this our sacrifice of praise and thanksgiving.”

the offering made by God's servants and His whole family, about which offering request is made that it "may become to us the Body and Blood" of His Son our Lord. Thirdly it is an offering to His Majesty of His "own gifts and boons" (that is, as Innocent IIIrd⁸ rightly explains it, of the fruits of the fields and trees, although the words of the Lord have already been said over them by the Priest), which are called the holy Bread of eternal life and the Chalice of everlasting salvation. Fourthly and lastly (in the prayer *Supra quae*

propitio)⁹ the sacrifice already offered in three ways, and according to Roman opinion now fully consecrated, is compared with the sacrifices of the patriarchs Abel and Abraham, and with that offered by Melchisedech. This last, being called "holy sacrifice, unblemished victim," shews that the comparison is not only in respect to the offerer, but also to the things offered. Then the Church prays that they may be carried up by the hands of the holy Angel to the altar of God on high. Lastly, after the second series of names of Saints, there occurs the piece of a prayer (*Per quem haec omnia*) which appears rather suitable to a benediction of fruits of the earth, than to the Eucharistic sacrifice. It is clear therefore from what has been already said that the law of believing, set forth by the Council of Trent, has gone some distance beyond the boundaries of the law of praying. The matter is indeed one full of mystery and fitted to draw onwards the minds of men by strong feelings of love and piety to high and deep thoughts. But, inasmuch as it ought to be treated with the highest reverence and to be considered a bond of Christian charity rather than an occasion for subtle disputations, too precise definitions of the manner of the sacrifice, or of the relation which unites the sacrifice of the eternal Priest and the sacrifice of the Church, which in some way certainly are one, ought in our opinion to be avoided rather than pressed into prominence. XII. What therefore is the reason for impugning our form and intention in ordaining Presbyters and Bishops? The Pope writes, if we omit things of less importance, "that the order of priesthood or its grace and power, which is especially the power of consecrating and offering the true Body and Blood of the Lord in that sacrifice which is no nude commemoration of the sacrifice offered on the cross" must be expressed in the ordering of a Presbyter. What he desires in the form of consecration of a Bishop is not so clear; but it seems that, in his opinion, in some way or other, "high priesthood" ought to be attributed to him.

Both however of these opinions are strange, inasmuch as in the most ancient Roman formulary used, as it seems, at the beginning of the third century after Christ (seeing that exactly the same form is employed both for a Bishop and a Presbyter, except the name), nothing whatever is said about "high priesthood" or "priesthood" nor about the sacrifice of the Body and Blood of Christ. "The prayers and oblations which he will offer (to God) by day and by night" are alone mentioned, and the power of remitting sins is touched on.¹⁰ Again in the old Roman Sacramentary, which may perhaps be assigned to the VIth century, only three prayers are employed for the ordination of Presbyters. Two are short collects, namely *Oremus dilectissimi*, and *Exaudi nos*, and a third

⁸On the Sacred Mystery of the Altar v chap. 2.

⁹This prayer has given a good deal of trouble to the commentators. We may compare for example Innocent IIIrd On the sacred mystery of the altar, v. 3; Bellarmine On the Sacrament of the Eucharist (on the Mass), vi. 24; and Romsée Literal meaning of the Rites of the Mass, art. xxx. Its older form appears in [Pseudo-Ambrose] On the Sacraments, iv. 6 § 27, where its parts are found in inverse order; and where we also read "by the hands of Thy angels." It seems to have been already added to the Roman Canon in the time of Leo 1st, if the statement about the words "holy sacrifice, unblemished victim" added by him, which is found in his Life, is a true one. Cp. his Sermon iv 3, where he speaks of Melchisedech as "immolating the sacrifice of that sacrament, which our Redeemer consecrated as His body and blood."

¹⁰See the Canons of Hippolytus in the edition of Hans Achelis in the 6th volume of the series of *Texte und Untersuchungen* edited by Gebhardt and Harnack, Leipzig 1891, pages 39—62.

longer, like a Eucharistic preface, which is the real Benediction, and was in former times attached to the laying on of hands, which begins *Domine sancte pater omnipotens aeternae Deus, honorum omnium*, etc. These prayers from the VIth to the IXth century and perhaps later, made up the whole rite for ordaining a Presbyter in the church of Rome, with no other ceremonies whatever. These prayers, scarcely altered, are retained in the Roman Pontifical, and form as it were the nucleus of the service For the ordering of a Presbyter, although the laying on of hands which used to be attached to the longer form has passed to the commencement of the office, and is given again at the end of the Mass. But in the Benediction “priesthood” is not attributed to Presbyters, and in none of that series of prayers is anything said of the power of sacrificing or of the remission of sins. “Priestly grace” too, which is prayed for in the second collect in most of the Pontificals, is simply “spiritual grace” in some other uses both English and foreign.¹¹ Yet this form is undoubtedly valid. Similar things may be said about the form for the consecration of a Bishop. The Collects and the Benediction remain in the modern Pontifical, only slightly changed. They begin *Exaudi Domine supplicum preces* (now *Adesto*) *Propitiare Domine*, and *Deus honorum omnium*. The second of these mentions “the horn of priestly grace,” the third, “the high priesthood,” but nothing else which can be alleged as confirming the Pope’s position. All the rest of the matter in the Pontifical is derived from the usage of later times and especially from Gallican rites.¹²

And this also may be said as to the power of remitting sins, which is mentioned by the Council of Trent (see ch. III n. 1) together with “a certain power of consecrating and offering”, and with equal emphasis. It appears nowhere up to the XIth century in the ordination of a Presbyter; nowhere in the old Roman form for the consecration of a Bishop. It appears only in the long Gallican interpolation in the blessing of a Bishop *Sint speciosi munere tuo pedes eius up to ut fructum de profectu omnium consequatur*. But the Pope who appeals to the Council of Trent must submit to be judged by it. Either then these Roman formulas were valueless because of their defect in the matter of sacrifice and remitting sins, or else the authority of that Council is of no value in settling this question about the necessary form of Order. We may here quote another ancient form¹³ of consecrating a Bishop which was used both in England and elsewhere during the XIth century and displays the same simplicity. It begins, *Pater sancte omnipotens Deus qui per Dominum*, and prays for those about to be consecrated, “that they may be enabled to celebrate the mysteries of the Sacraments which have been ordained of old. May they be consecrated by Thee to the high-priesthood to which they are called;” but it says not a word about sacrifice nor about the power to remit sins. XIII. On the subject of the title of Bishops our simple and immediate reply is that the name of high Priest is in no way necessary to describe this office in the form of consecration. The African Church openly forbade even her Primates to use this title;¹⁴ the words ‘pontifical glory’ which sometimes

¹¹See e.g. Edm. Martenne (or Martene) *Anc. Rites of the Church* t. ii pp. 429, 493, Rouen 1700.

¹²The old Roman Sacramentary may be collected from three books especially, as far as the prayers are concerned, viz., the “Leonine,” “Gelasian,” and “Gregorian,” as they are called.

¹³This form occurs in the Missal of Leofric of Exeter (p. 217 of the edition by F. E. Warren, Oxford, 1883), in a Pontifical of Jumièges (Martenne *On the Ancient Rites of the Church* t. ii p. 367 Rouen 1700), and in the Sarum Pontifical (see Maskell *Ritual Monuments of the Eng.* Ch. 2nd ed. Oxford, vol. ii p. 282). The words about celebrating the mysteries and the Admonition to Priests (ib. p. 246) seem to have served our fathers as a precedent in the ordination of a Presbyter. This form, which has a certain affinity to those in the Canons of Hippolytus and the Apostolic Constitutions, has an air of great antiquity, and except for the expression ‘high priesthood,’ appears equally applicable to the ordering of a Presbyter. It is believed by some to be of Roman origin and to have been adapted by Augustine of Canterbury to our use.

¹⁴See Third Council of Carthage can. 26 A.D. 397: “The Bishop of a chief see may not be called chief of the Priests, or high Priest, or anything else of the kind, but simply Bishop of a

But the first alone is Roman without any admixture. The Gelasian was introduced into Gaul about the beginning of the VIIIth century, and the Gregorian under Charles the Great, being sent thither by Pope Hadrian about A. D. 780. Both of them contain Gallican rites and prayers mixed with Roman. Three “Ordines” should also be consulted for the knowledge of the rites, namely the 8th and 9th of Mabillon, and those called by the name of “S. Amand,” which were first printed by the learned L. Duchesne in the Appendix to his book *Antiquities of Christian Worship*, Paris, 1889. All of which shew the same simplicity.

appear in Sacramentaries, denote a secular or Jewish distinction rather than a rank in the Church. We are content with the name of Bishop to describe the office of those who, when they were left, after the removal of the Apostles, to be chief pastors in the Church, exercised the right of ordaining and confirming, and ruled, together with a body of presbyters, over a single “parochial” or diocese, as it is now called. And to this order the Pope, in the beginning of his letter, following the sound custom of antiquity, reckons himself to belong. Bishops are undoubtedly Priests, just as Presbyters are Priests, and in early ages they enjoyed this title more largely than Presbyters did; nay, it was not till the fourth or fifth century that Presbyters, in the Latin Church at any rate, came to be called Priests in their own right. But it does not therefore follow that Bishops nowadays ought to be called high Priests in the form of Consecration. The question of the priesthood of Bishops was perhaps different in early times, certainly up to the IXth and possibly to the XIth century, when a simple Deacon was often made Bishop *per saltum*, i.e. without passing through the presbyterate.¹⁵ In those days of course it was fitting, if not indeed necessary, to apply to the Bishop the term Priest, as, e.g., is done in the Prayer still used in the Pontifical, which speaks of “the horn of priestly grace.” But inasmuch as this custom of consecration *per saltum* has long since died out (though perhaps never expressly forbidden by statute) and every Bishop has already, during the period of his presbyterate, been a Priest, it is no longer necessary to confer the priesthood afresh, nor, if we give our candid opinion, is it a particularly good and regular proceeding. Nor ought the Romans to require it, inasmuch as the Council of Trent calls

chief see.” St. Augustine of Hippo is believed to have been present at this Council. The passage cited for this title by Baronius etc, is certainly not from Augustine.

preaching of the Gospel “the chief duty of Bishops” (Session V on Reform. ch. II and Sess. XXXIV on Ref. ch. iv). It is not therefore necessary that either high priesthood or any other fresh priesthood should be attributed to Bishops. But although in our Ordinal we say nothing about high Priests and Pontiffs, we do not avoid using the terms in other public documents. Examples may be taken from the Latin edition of the Book of Common Prayer, A.D. 1560, from the letter written by twelve Bishops on behalf of Archbishop Grindall, A.D. 1580, and from Archbishop Whitgift’s

¹⁵On this point cp. Mabillon Commentary prefixed to the *Ordo Romanus*, chaps. xvi. And xviii. (Migne Pat. Lat. vol. 78, pp. 912-3 and 919-20) and Martenne *Ancient Rites of the Church*, lib. i, c. viii, art. 3, sec. 9, 10, t. ii p. 278 foll., and the 8th “Ordo” of Mabillon (= Martenne i), which is found in MSS. of the IXth century, where it is clear that there was no distinction in the form if the man to be consecrated was only a Deacon. The XIIIth canon of the Council of Sardica was but poorly observed in the West, as appears incidentally from the translation by Dionysius Exiguus, who renders the words of the canon *εάν μη και αναγνώστου και διακονου και πρεσβυτερου υπηρεσιαν εκτελεση* as follows: “unless he have discharged the duty of Reader and the office of Deacon or Presbyter.” As instances are quoted John the Deacon, the disciple of S. Gall (Walafrid Strabo in the Life of S. Gall, c. 23-25, A.D. 625). Constantine the anti-pope (A.D. 767), and the Popes Paul I (A.D. 757), Valentine (A.D. 827), and Nicolas I (A.D. 858). This custom was one amongst the charges brought against the Latin Church by Photius of Constantinople. Nicholas did not deny the fact, but retorted on the Greeks their custom of promoting a layman to be a Patriarch. (Ep. lxx in Labbe and Cossart *Councils* viii p. 471 B). The ordination of a Deacon to the Episcopate *per saltum* is further implied in the *Ritual of the Nestorian Syrians* in Morinus, *On Ordinations*, pt. ii p. 388, Antwerp, 1695= Denzinger, *Rites of the Orientals*, vol ii p. 238 (1864).

Commission to his Suffragan the Bishop of Dover, A.D. 1583.¹⁶ XIV. Two of the arguments advanced against our form, which specially commend themselves to the Pope, shall receive a somewhat larger answer. The first of these is, that about a century after the Ordinal was published, in 1662, we added to the words "Receive the Holy Ghost" other words intended to define the office and work of a Bishop or Priest (cp. chap. XV, notes 1 and 3). The Pope suggests that these words of our Lord without the subsequent addition are in themselves insufficient, imperfect, and inappropriate. But in the Roman Pontifical, when a Bishop is consecrated by the laying on of the hands of the consecrating Bishop and assisting Bishops, the only form is "Receive the Holy Ghost." In our later Pontificals, on the other hand, the Holy Spirit was invoked by the Hymn "Come, Holy Ghost," with the exception of the Exeter book, in which the Roman form is added. Then came the prayer about the "horn of priestly grace." As we have already said, the words Bishop or Episcopate do not appear in any prayer of the Pontifical until after the Consecration; so that if, according to the Pope's suggestion, our fathers of the year 1550 and after, went wrong in the form by omitting the name of Bishop, they must have gone wrong in company with the modern Roman Church. At that time too there immediately followed in our Ordinal those words of S. Paul which were believed to refer to the consecration of S. Timothy to be Bishop of Ephesus, and were clearly used in this sense:—"And remember that thou stir up the grace of God which is in thee by imposition of hands; for God hath not given us the spirit of fear, but of power, and love, and of soberness (2 Tim. i 6, 7)." You may remember, brethren, that these are the only words quoted by the Council of Trent to prove that Order confers grace (Session XXIII On the sacrament of Order c. III.) This form then, whether contained in one

sentence as in the Roman Church, or in two as in ours, is amply sufficient to create a Bishop, if the true intention be openly declared, which is done in the other prayers and suffrages (which clearly refer to the office, work and ministry of a Bishop), in the examination, and other like ways. We say that the words "Receive the Holy Ghost" are sufficient, not that they are essential. For they do not occur in the more ancient Pontificals whether Roman or English, nor in any Eastern book of any date. But we gladly agree with the Council of Trent that the words are not vainly uttered by Bishops¹⁷ either in consecrating a Bishop or in ordering a Presbyter, since they are words spoken by our Lord to His Disciples from whom all our offices and powers are derived, and are fit and appropriate for so sacred an occasion. They are not equally appropriate in the case of the diaconate, and are accordingly not used by us in admitting to that office. XV. The form of ordering a Presbyter employed among us in 1550 and afterwards was equally appropriate. For after the end of the "Eucharistic" prayer, which recalls our minds to the institution of our Lord, there followed the laying on of hands by the Bishop with the assistant Priests, to which is joined the "imperative" form taken from the Pontifical, but at the same time fuller and more solemn. (Cp. ch. xix). For after the words "Receive the Holy Ghost" there immediately followed, as in the modern Roman Pontifical (though the Pope strangely omits to mention it), "Whose sins thou dost forgive, they are forgiven; and whose sins thou dost retain, they are retained," and then the words from the Gospel (S. Luke xii 42) and S. Paul (1 Cor. iv 1), which were very rightly added by our fathers, "and be thou a faithful Dispenser of the word of God and of His holy Sacraments: in the Name of the Father, and of the Son, and of the Holy Ghost." This form is suitable to no other ministry of the Church but that of a Priest, who has what is called the power of the keys and who alone with full

¹⁶See the collect for the clergy and people after the Litany, and Councils of Great Britain iv pp. 293 and 304. In the latter passage Grindall is styled by his brethren "Noble Christian Prelate and High Priest of God in the Church of England."

¹⁷See Council of Trent, Sess. XXIII On the sacrament of Order can. IV.

right dispenses the word and mysteries of God to the people, whether he remain a Presbyter or be advanced to higher duties as Bishop. Then there followed, as there still follows, the ceremony of conferring the power to preach and to minister the Sacraments in the sphere where a man has been appointed to that ministry, together with the delivery of the holy Bible, which is, in our opinion, the chief instrument of the sacred ministry and includes in itself all its other powers, according to the particular order to which the man is ordained. And in view of Gordon's case it may not perhaps be idle to explain that these forms are not only verbally but really different. The former, "Receive the Holy Ghost," with what follows, together with laying on of hands, confers the general faculties and powers of

priesthood, and as is generally said, imprints the character. The second, together with the delivery of the Bible, gives a man the right to offer public service to God and to exercise authority over the Christian people who are to be entrusted to his charge in his own parish or cure. The two commissions taken together include everything essential to the Christian priesthood, and, in our opinion, exhibit it more clearly than is done in the Sacramentaries and Pontificals. Nor indeed do we avoid the term *Sacerdos* and its correlatives either in the Latin edition of the "Book of Common Prayer or of the Ministry of the Sacraments as administered in the Church," published in 1560 in the reign of Elizabeth, nor in other public documents written in Latin.¹⁸ That this was not done without intention appears from the fact that in our translations of the Bible published in the XVIth century the word *ιερευς* is rendered by Priest (the word which is always used in the Anglican Ordinal, and very often in the Communion Office and elsewhere), while *πρεσβυτερος* is translated Elder. When therefore in 1662 the addition "for the office and work of a Bishop or Priest" was made, it would not seem to have been done in view of the Roman controversy, but in order to enlighten the minds of the Presbyterians, who were trying to find a ground for their opinions in our Prayer Book. Historians are well aware that at this period, when the king had been killed, his son driven into exile, and the Church Government upset, the Church of England's debate with the Presbyterians and other innovators was much more severe than it was with the Romans. These words then were not added to give liturgical completeness to the form. For the changes mentioned drew us further away from the Pontificals instead of bringing us nearer. The object of the addition therefore was to declare the difference in the orders. And at this period other similar additions were made by way of protest against the innovators, as for example the suffrages in the Litany against rebellion and schism, the prayer for the High Court of Parliament and for the establishment of religion and peace at home, and the Ember Week Collects. That these facts should escape the Pope's notice is perhaps not strange; they only prove the difficulty in interpreting our Prayer Book that

has arisen from the separation of our nationalities and churches.¹⁹ But the XVIth century form was not merely in itself sufficient but more than sufficient. For the collect Almighty God, giver of all good things which beseeches God on behalf of those called "to the office of the priesthood," that they may faithfully serve Him in that office, was at that time part of the form, and used to be said by the Bishop immediately before the examination.²⁰ Now however, since the new words clearly

¹⁸In the Articles of Religion 1562, in the Canons of 1571 and elsewhere: See Councils of Gt. Brit. vol. iv pp. 236, 263, 429. Similarly in the Greek translation of our Prayer-Book (Cambridge 1665) *ιερωσυνη* and *ιερευς* occur in the Ordinal, the Order for the Holy Communion, and elsewhere. In certain Latin versions Presbyter seems to be used in preference.

¹⁹See G. Burnet Hist. of Ref. vol ii. p. 144 (1680) and Vindication of Ord. of Ch. of Eng. p. 71 (1677); H. Prideaux Eccl. Tracts pp. 15, 36, 69—72 etc. (1687) ed. 2, 1715; Cp. his letter in Cardwell Conferences pp. 387-8 n., ed. 3 Oxf. 1849.

²⁰It is worth while quoting this collect here, as used in 1550 and 1552, since such stress is laid at Rome upon the words "to the office and work of a Presbyter or Priest." "Almighty God, giver of all good things, which by thy Holy Spirit hast

express the same sense, it has been moved elsewhere and takes the place of the collect for the day. That the Pope should also have been unaware of this change is no matter of wonder: but the fact is worthy of your attention. For we note that he shows some hesitation in this part of his letter, when he suggests that the form of 1662 ought perhaps to be considered sufficient if it had only been a century older (§7). He also seems to adopt the opinion of those theologians who believe that the form does not consist of one prayer or benediction, whether “precative,” as they call it, or “imperative,” but in the whole series of formulas which are bound together by a moral union. For he goes on to argue about the help which has been “quite recently” (as he believes) sought for our case from the other prayers of the same Ordinal; although this appeal on our part is by no means recent, but was made in the XVIIth century when first the argument on the Roman side about the additional words was brought to our notice.²¹ Nor do we suppose that the Pope disagrees with Cardinal John De Lugo in his teaching that the whole ordination service is a single action, and that it makes no difference if the matter and form are separated from one another (as is the case in the Pontifical), if what intervenes makes

up a moral whole.²² XVI. The argument however which the Pope appears to consider of chief importance and stability is not that which concerns the addition of any words to our form, but that which lays to our charge the removal of certain acts and prayers from the rest of the rite. His letter says (§ 7): “For, to put aside other reasons which show these (prayers) to be insufficient for the purpose in the Anglican rite, let this argument suffice for all:²³ from them has been deliberately removed whatever sets forth the dignity and offices²⁴ of the priesthood in the Catholic rite. That form consequently cannot be considered apt or sufficient for the Sacrament which omits²⁵ what it ought essentially to signify.” And a little later he adds words which are in one way untrue and in another very likely to mislead the reader, and are unfair to our Fathers and ourselves:—“In the whole Ordinal not only is there no clear mention of the sacrifice, of consecration, of the Sacerdotium, 27 and of the powers of consecrating and offering sacrifice, but every trace of these things . . . was deliberately removed and struck out” (§ 8). In another passage he speaks (with great ignorance of the facts, we regret to say) of “that small²⁶ section of the Anglican body, formed in recent times, whose contention is that the said Ordinal can be understood and interpreted in a sound and orthodox sense.” Next he declares that we deny or corrupt the Sacrament of Order, that we reject (viz., in the Ordinal) all idea of consecration and sacrifice, until at last the offices of Presbyter and Bishop are left “mere names without the reality which Christ instituted.” The answer to these harsh and inconsiderate words has already been partly made when we gave the warning that he who interprets the acts of our Church by mere conjecture and takes it upon himself to issue a new decree

appointed divers Orders of Ministers in thy Church; Mercifully behold these thy servants now called to the Office of Priesthood; and replenish them so with the truth of thy doctrine, and innocency of life, that, both by word and good example, they may faithfully serve thee in this Office, to the glory of thy Name and profit of the Congregation; through the merits” &c. This collect expresses shortly the idea of the “blessing,” *Deus honorum omnium*. It is even thought by some that “*bonorum*” (= “of all good things”) is a variant of “*honorum*.”

²¹See Burnet Vindication pp. 8, 71, who writes that the additional words are not essential to Ordination, but are merely explanations “of what was clear enough by the other parts of these offices before”; and Prideaux Eccl. Tracts p. 117, who quotes the prayer Almighty God in full and argues from it. Bramhall had written similarly in 1658 Works A. C. L. iii pp. 162—9 Oxf. 1844.

²²On the Sacraments in General, disp. ii sec. v § 99 t. iii p. 293—4, Paris 1892.

²³Latin *instar omnium*.

²⁴Latin *officia*. The English version inaccurately has “office”.

²⁵Latin *reticet*.

²⁶Latin *non ita magna*.

as to what is necessary in the form of Order, condemning our lawful bishops in their government of the Church in the XVIth century by a standard which they never knew, is entering on a slippery and dangerous path. The liberty of national Churches to reform their own rites may not thus be removed at the pleasure of Rome. For, as we shall show in part later, there is certainly no one "catholic rite," but even the forms approved by the Roman Church vary much from one another. The Pope says nothing however of the well-known intention of our

Church set forth in the preface to the Ordinal, and nothing of the principle which our Fathers always set before themselves and which explains their acts without any adverse interpretation. XVII. Now the intention of our Church, not merely of a newly formed party in it, is quite clearly set forth in the title and preface of the Ordinal. The title in 1552 ran "The fourme and maner of makynge and consecratynge Bishoppes, Priestes and Deacons." The preface immediately following begins thus:—"It is euident unto all men, diligently readinge holye Scripture and auncient aucthours, that from the Apostles tyme there hathe bene these ordres of Ministers in Christ's Church: Bishoppes, Priestes, and Deacons: which Offices were euermore had in suche reuerent estimacion, that no man by his own private auctoritie might presume to execute any of them, except he were first called, tried, examined, and knowen to have such qualities as were requisite for the same; And also, by publique prayer, with imposition of hands, approued, and admitted thereunto. And therefore, to the entent that these orders shoulde bee continued, and reuerentlye used and esteemed, in this Church of England; it is requysite that no man (not beyng at thys presente Bisshope, Priest nor Deacon) shall execute anye of them, excepte he be called, tryed, examined and admitted, accordynge to the form hereafter folowinge." Further on it is stated incidentally that "every man which is to be consecrated a Bishop shalbe fully thyrtye yeres of age." And in the rite itself the "consecration" of the Bishop is repeatedly mentioned. The succession and continuance of these offices from the Lord through the Apostles and the other ministers of the primitive Church is also clearly implied in the "Eucharistical" prayers which precede the words Receive the Holy Ghost. Thus the intention of our Fathers was to keep and continue these offices which come down from the earliest times, and "reverently to use and esteem them," in the sense, of course, in which they were received from the Apostles and had been up to that time in use. This is a point on which the Pope is unduly silent. XVIII. But all this and other things of the same kind are called by Pope Leo "names without the reality instituted by Christ." But, on the contrary, our Fathers' fundamental principle was to refer everything to the authority of the Lord, revealed in the Holy Scriptures. It was for this that they rescinded ceremonies composed and added by men, even including that best known one, common to the modern Latin and Eastern churches, though unknown to the ancient Roman church,²⁷ of holding a copy of the Gospels

over the head of one about to be ordained Bishop during the utterance of the blessing and the laying on of hands. Thus then our Fathers employed one matter in imprinting the character, viz., the laying on of hands, one matter in the commission to minister publicly and exercise powers over the flock entrusted to each, viz., the delivery of the Bible or Gospels. This last they probably borrowed from the office of inaugurating a new Bishop and similar rites; thus in the Pontifical the Gospels are still delivered to the Bishop after the ring is given. Other ceremonies of somewhat later date and imported into the ancient Roman Ordinal from sources for the most part foreign

²⁷See Apost. Const. viii 4 and Statutes of the Ancient Church can. 2, which appear to be of Gallican origin from the province of Aries, although they are sometimes published with the false title of the IVth Council of Carthage. That this rite was foreign to the Church of Rome is clearly testified by the writer of a book On the divine offices which is included in the

and especially Gallican, such as the delivery of the instruments and ornaments, the blessing and unction of hands and head, with the accompanying prayers, they cut out as they had a full right to do. The porrection of the instruments came, as is well known, from the formularies of minor orders and was unknown to any Pontifical before the XIth century, which appears to be the earliest date of its mention in writing. When it was reformed, the new formula "Receive the power of offering sacrifice to God and of celebrating mass (or, as in the Roman Pontifical, masses) on behalf of both the quick and dead" was likewise dropped. The prayer for the blessing of the hands could be said or omitted at the discretion of the Bishop even before the XVIth century. The anointing is a Gallican and British custom, not Roman at all. Not only is it absent from the 'Leonine' and 'Gelasian' Sacramentaries, but also from Mabillon's VIIIth and IXth Ordines and those of S. Amand, which apparently represent the custom of the VIIIth and IXth centuries. Furthermore we find Pope Nicholas I writing in the IXth century (874) to Rudolf of Bourges that in the Roman Church the hands neither of Priests nor Deacons are anointed with chrism.²⁸ The first writer who mentions anything of the kind is Gildas the Briton.²⁹ The same may be said of the anointing of the head, which clearly came, in company with much else, from an imitation of the consecration of Aaron, and makes its first

works of our Alcuin and is perhaps of the XIth century. "(The rite) is not found in either authority whether old or new, nor in the Roman tradition" (ch. xxxvii, Migne's P.L, vol. 101, p. 1237; and so Amalarius On the offices of the Church ii 14, P.L. 105 p. 1092). On its use in the consecration of a Pope see Mabillon Ord. ix 5.

appearance in the IXth and Xth centuries outside Rome,³⁰ as may be gathered from Amalarius (On the offices of the Church, bk, ii 14) and our own Pontificals. There remains to be mentioned the Gallican Benediction *Deus sanctificationum omnium auctor*, which was added superfluously to the Roman Benediction (cap. XII), and was rejected like the rest by our Fathers. This prayer, which is manifestly corrupted by interpolation as it stands in the Roman Pontifical, seemed to favour the doctrine of transubstantiation, rejected by us, and is in itself scarcely intelligible, so that it was singularly inappropriate to a liturgy to be said in the vulgar tongue for the edification of our own people. And yet this very prayer, whatever it may imply, teaches nothing about the power to offer sacrifice. XIX. What wonder then if our Fathers, wishing to return to the simplicity of the Gospel, eliminated these prayers from a liturgy which was to be read publicly in a modern language? And herein they followed a course which was certainly opposed to that pursued by the Romans. For the Romans, starting from an almost Gospel simplicity, have relieved the austerity of their rites with Gallican embellishments, and have gradually, as time went on, added ceremonies borrowed from the Old Testament in order to emphasize the distinction between people and Priests more and more. That these ceremonies are "contemptible and harmful," or that they are useless at their proper place and time, we do by no means assert—we declare only that they are not necessary. Thus in the XVIth century when our Fathers drew up a liturgy at once for the use of the people

²⁸Migne P. L. vol. 119 p. 884, where the letter is numbered 66. Cf. also Martenne On the ancient rites of the Church bk. I c. viii art. ix §§ 9 and 14. This reply of Nicholas, beginning "Praeterea sciscitaris" is inserted in Gratian's Decree, dist. xxiii c. 12.

²⁹Letter § 106 p. 111 (Stevenson's edition 1838). He mentions "the blessing by which the hands of Priests or Ministers are dedicated" (initiantur). The anointing of the hands of Presbyters and Deacons is ordered in Anglican Sacramentaries of the Xth and XIth centuries.

³⁰Cp. Council of Trent Sess. XXIII On the Sacrament of Order can. V, which, though it apparently admits that unction is not requisite in Ordination, anathematizes those who shall say that this and other ceremonies of Order are "contemptible and harmful."

and the clergy they went back almost to the Roman starting-point. For both sides alike, their holy Fathers, and ours, whom they call innovators, followed the same most sure leaders, the Lord and His Apostles. Now however, the example of the modern Church of Rome, which is entirely taken up with the offering of sacrifice, is held up to us as the only model for our imitation. And this is done so eagerly by the Pope that he does not hesitate to write that “whatever sets forth the dignity and offices³¹ of the priesthood” has been “deliberately removed” from the prayers of our Ordinal. But we confidently assert that our Ordinal, particularly in this last point, is superior to the Roman Pontifical in various ways, inasmuch as it expresses more clearly and faithfully those things which by Christ’s institution belong to the nature of the priesthood (§9) and the effect of the

Catholic rites used in the Universal Church. And this, in our opinion, can be shown by a comparison of the Pontifical with the Ordinal. The Roman formulary begins with a presentation made by the Archdeacon and a double address from the Bishop, first to the clergy and people, and then to the candidates for ordination—for there is no public examination in the ordination of a presbyter. Then follows the laying-on of the Bishop’s hands, and then those of the assistant presbyters, performed without any words; in regard to which obscure rite we have quoted the opinion of Cardinal de Lugo (chap. XV). Then the three ancient prayers are said, the two short collects, and the longer Benediction (chap. XII) which is now said by the Bishop “with his hands extended in front of his breast.” This prayer, which is called the “Consecration” in ancient books, is considered by weighty authorities,³² since the time of Morinus, to be the true “form” of Roman ordination, and doubtless was in old days joined with laying on of hands. Now however “extension of hands” is substituted for laying on of hands, as is the case in Confirmation (chap. X), while even that gesture is not considered necessary. At any rate, if the old Roman ordinations are valid, directly this prayer has been said the ordination of presbyters is complete in that church even at the present day. For any “form” which has once sufficed for any Sacrament of the Church, and is retained still unaltered and complete, must be supposed to be retained with the same intent as before: nor can it be asserted without a sort of sacrilege that it has lost its virtue, because other things have been silently added after it. In any case the intention of the more recent part of the Roman formulary cannot have been to empty the more ancient part of its proper force; but its object may not improperly be supposed to have been as follows, first that the priests already ordained should be prepared by various rites and ceremonies for the offering of the sacrifice, secondly that they should receive the power to offer it in explicit terms, thirdly that they should begin to exercise the right of the priesthood in the celebration of the Mass, lastly that they should be publicly invested with another priestly power, that of remitting sins. Which opinion is confirmed by the language of the old Pontificals, as for example in the Sarum Pontifical we read “Bless and sanctify these hands of thy priests.” All therefore that follows after that ancient “form,” just like our words added in 1662, is simply not necessary. For those powers above specified can be conveyed either implicitly and by usage, as was the method in ancient times, or at once and explicitly; but the method of conveyance has no relation to the efficacy of ordination.

Our Fathers then, having partly perceived these points, and seeing that the scholastic doctrine concerning the transubstantiation of the bread and wine and the more recent doctrine of the repetition (as was believed) of the sacrifice of the cross in the Mass, were connected by popular feeling with certain of the ceremonies and prayers that followed, asked themselves in what way the

³¹The English Version has “office.”

³²See Martenne *Anc. Rites of the Church* book i ch. viii art ix § 18, tom. 2 p. 320 Rouen 1700, and Gasparri *Canonical Treatise on Ordination* § 1059, Paris. 1893.

whole rite of ordination might not only be brought to greater solidity and purity, but might become more perfect and more noble. And inasmuch as at that time there was nothing known for certain as to the antiquity of the first prayers, but the opinions of learned men assigned all efficacy to the “imperative” forms, they turned their attention to the latter rather than to the former. With this object therefore in view they first aimed at simplicity, and concentrated the parts of the whole rite as it were on one prominent point, so that no one could doubt at what moment the grace and power of the priesthood was given. For such is the force of simplicity that it lifts men’s minds towards divine things more than a long series of ceremonies united by however good a meaning. Therefore having placed in the forefront the prayers which declared both the office of the priesthood and its succession from the ministry of the Apostles, they joined the laying on of hands with our Lord’s own words. And in this matter they intentionally³³ followed the example of the Apostolic Church, which first “fell to prayer” and then laid on hands and sent forth its ministers, not that of the Roman Church, which uses laying on of hands before the prayers. Secondly when they considered in their own minds the various offices of the priesthood they saw that the Pontifical in common use was defective in two particulars. For whereas the following offices were recounted in the Bishop’s address:—“It is the duty of a priest to offer, to bless, to preside, to preach and to baptize,” and the like, and mention was made in the old “form” for the presbyterate “of the account which they are to give of the stewardship entrusted to them,” nevertheless in the other forms nothing was said except about offering sacrifice and remitting sins, and the forms conveying these powers were separated some distance from one another. Again too they saw that the duties of the pastoral office had but little place in the Pontifical, although the Gospel speaks out fully upon them. For this reason then they especially set before our Priests the pastoral office, which is particularly that of Messenger, Watchman and Steward of the Lord, in that noble address which the Bishop has to deliver, and in the very serious examination which follows: in words which must be read and weighed and compared with the holy Scriptures, or it is impossible really to know the worth of our Ordinal. On the ether hand, as regards the sacraments, in their revision of the “imperative” forms, they gave

the first place to our Lord’s own words, not merely out of reverence, but because those words were then commonly believed to be the necessary “form.” Then they entrusted to our Priests all “the mysteries of the sacraments anciently instituted” (to use the words of our old Sacramentary, see chap. xn³⁴), and did not exalt one aspect of one of them and neglect the others. Lastly they placed in juxtaposition the form which imprints the character and the form which confers jurisdiction. And in these and similar matters, which it would take long to recount, they followed without doubt the example of our Lord and His Apostles. For the Lord is not only recorded to have said “Do this in remembrance of me,” and “Go therefore and teach all nations baptizing them”—in order to teach the due ministry of the Sacraments, but many things and those most worthy of attention about the pastoral office, both His own, as the good Shepherd, and that of His disciples, who instructed by His example ought to lay down their lives for the brethren. (Cp. 8. John x 11—18 and 1 Ep. iii 16). Many things too did He deliver in the Gospel about the preaching of the Word, the stewardship entrusted to His chosen servants, the mission of His Apostles and His disciples in His stead, the conversion of sinners and remission of offences in the Church, mutual service to one another, and much else of the same kind. This then was the manner in which it pleased

³³See the Archbishop’s address to the people in the consecration of a Bishop, and Acts xiii 3; cp. vi 6 and xiv 22.

³⁴See Labbe and Cossart Councils vol. xiv p. 1740, Paris 1672, and vol. xiii p. 538 on the year 1439. Compare also Councils of Great Britain Wilkins vol. iv p. 121 col. 2, which differs slightly and omits the words of the Decree of Eugenius. It is obvious that Eugenius

the divine Wisdom especially to instruct His messengers, watchmen, and stewards, in order that they might bear witness to the world after His departure and duly prepare a holy people until He should come again. And as the Lord had done, so did the Apostles. S. Peter is a witness to this, when as a Fellow-elder he exhorts the elders, that is the Presbyters and Bishops, to “feed the flock of God which is among you,” and promises them that “when the chief Shepherd shall appear, ye shall receive a crown of glory that fadeth not away” (1 Pet. v 1—4). S. Paul is a witness, when he admonishes the Presbyters and Bishops of Ephesus with his own lips (Acts xx 18—35), and instructs them in an epistle of extraordinary spiritual power (Eph. iv 11—13). A witness too is Pope S. Gregory, to whom the whole English race now scattered over the face of the earth owes so much, who in his book “On the pastoral care” has much to say on these matters and on the personal life of pastors, but is almost or entirely silent on the offering of sacrifice. His book too was held in such high honour that it was delivered to Bishops in the IXth century, together with the book of the canons, at the time of their ordination, when they were further exhorted to frame their lives according to its teaching.³⁵ S. Peter also himself, who commends the pastoral office so urgently

to the Presbyters, exhorts the whole people, in the earlier part of the same Epistle, about offering, as a holy priesthood, spiritual sacrifices to God. This shews that the former office is more peculiar to Presbyters, seeing that it represents the attitude of God towards men (Ps. xxiii [xxii], Isaiah xl 10, 11, Jerem. xxiii 1—4, Ezek. xxxiv 11—31), while the latter is shared in some measure with the people. For the Priest, to whom the dispensing of the Sacraments and especially the consecration of the Eucharist is entrusted, must always do the service of the altar with the people standing by and sharing it with him.³⁶ Thus the prophecy of Malachi (i 11) is fulfilled, and the name of God is great among the gentiles through the pure offering of the Church. We therefore, taking our stand on Holy Scripture, make reply that in the ordering of Priests we do duly lay down and set forth the stewardship and ministry of the word and Sacraments, the power of remitting and retaining sins, and other functions of the pastoral office, and that in these we do sum up and rehearse all other functions. Indeed the Pope himself is a witness to this, who especially derives the honour of the Pontifical tiara from Christ’s triple commendation of His flock to the penitent S. Peter. Why then does he suppose that, which he holds so honourable in his own case, to contribute nothing to the dignity and offices of the priesthood in the case of Anglican Priests? XX. Finally, we would have our revered brother in Christ beware lest in expressing this judgment he do injustice not only to us but to other Christians also, and among them to his own predecessors, who surely enjoyed in an equal measure with himself the gift of the Holy Spirit. For he seems to condemn the Orientals, in company with ourselves, on account of defective intention, who in the “Orthodox Confession” issued about 1640 name only two functions of a sacramental priesthood, that is to say that of absolving sins and of preaching; who in the “Longer Russian

³⁵This is proved by Hincmar in the preface to his Book of the LV Chapters; Migne P. L. vol. 126 p. 292.

³⁶This is evident from the Greek Liturgies and the Roman Missal where nearly everything is said in the plural number. Cp. e.g. the Order of the Mass: “Pray, brethren, that my sacrifice and yours may be made acceptable in the sight of God the Father Almighty;” and in the Canon, “Remember, Lord, Thy servants and handmaids N. and N. and all here present . . . [for whom we offer unto Thee, or] who offer unto Thee, this sacrifice of praise,” and later: “This oblation of us Thy servants, and also of all Thy family,” &c. On this point see e.g. S. Peter Damian in his book, *The Lord be with you*, in ch. viii, on the words “for whom we offer unto Thee.” “It is clearly shewn that this sacrifice of praise, although it seems to be specially offered by a single Priest, is really offered by all the faithful, women as well as men; for those things which he touches with his hands in offering them to God, are committed to God by the deep inward devotion of the whole multitude”; and on “This oblation.” “From these words it is more clear than daylight that the sacrifice which is laid upon the sacred altars by the Priest, is generally offered by the whole family of God.”

Catechism" (Moscow, 1839) teach nothing about the sacrifice of the Body and Blood of Christ, and mention among the offices which pertain to Order only those of ministering the Sacraments and feeding the flock. Further it thus speaks of the three Orders: "The Deacon serves at the Sacraments; the Priest hallows the Sacraments, in dependence on the Bishop; the Bishop not only hallows the Sacraments himself, but has the power also to impart to others by the laying on of his hands the gift and grace to hallow them." The Eastern Church is assuredly at one with us in teaching that the ministry of more than one mystery describes the character of the priesthood better than the offering of a single sacrifice. This indeed appears in the form used in the Greek Church to-day in the prayer beginning O God who art great in power:—"Fill this man, whom Thou hast chosen to attain the rank of Presbyter, with the gift of Thy Holy Spirit, that he may be worthy blamelessly to assist at Thy Sanctuary, to preach the Gospel of Thy Kingdom, to minister the Word of Thy Truth, to offer Thee spiritual gifts and sacrifices, to renew Thy people by the laver of regeneration," &c. (Habert Greek Pontifical p. 314, ed. 1643.) But let the Romans consider now not once or twice what judgment they will pronounce upon their own Fathers, whose ordinations we have described above. For if the Pope shall by a new decree declare our Fathers of two hundred and fifty years ago wrongly ordained, there is nothing to hinder the inevitable sentence that by the same law all who have been similarly ordained have received no orders. And if our Fathers, who used in 1550 and 1552 forms which as he says are null, were altogether unable to reform them in 1662, his own Fathers come under the self-same law. And if Hippolytus and Victor and Leo and Gelasius and Gregory have some of them said too little in their rites about the priesthood and the high priesthood, and nothing about the power of offering the sacrifice of the Body and Blood of Christ, the church of Rome herself has an invalid priesthood, and the reformers of the Sacramentaries, no matter what their names, could do nothing to remedy her rites. "For as the Hierarchy (to use the Pope's words) had become extinct on account of the nullity of the form, there remained no power of ordaining." And if the Ordinal "was wholly insufficient to confer Orders, it was impossible that in the course of time it could become sufficient, since no change has taken place.³⁷ In vain those who from the [VIth and XIth centuries] have attempted to hold some kind of sacrifice or of priesthood, [and power of remitting and retaining sins], have made some additions to the Ordinal." Thus in overthrowing our orders, he overthrows all his own, and pronounces sentence on his own Church. Eugenius IVth indeed brought his Church into great peril of nullity when he taught a new matter and a new form of Order and left the real without a word. For no one knows how many ordinations may have been made, according to his teaching, without any laying on of hands or appropriate form. Pope Leo demands a form unknown to previous Bishops of Rome, and an intention which is defective in the catechisms of the Oriental Church. To conclude, since all this has been laid before us in the name of peace and unity, we wish it to be known to all men that we are at least equally zealous in our devotion to peace and unity in the Church. We acknowledge that the things which our brother Pope Leo XIIIth has written from time to time in other letters are sometimes very true and always written with a good will. For the difference and debate between us and him arises from a diverse interpretation of the self-same Gospel, which we all believe and honour as the only true one. We also gladly declare that there is much in his own person that is worthy of love and reverence. But that error, which is inveterate in the Roman communion, of substituting

³⁷[The English of this and the following sentence seems hardly to represent the Latin. "Quum tale ipsum permanserit" might rather be translated "since it [i.e. the Ordinal] remained such as it was." The following sentence might be rendered:—"And they laboured in vain who from the times of Charles 1st onwards attempted to introduce (admittere) something of sacrifice and priesthood, by making some additions to the Ordinal."]

the visible head for the invisible Christ, will rob his good words of any fruit of peace. Join with us then, we entreat you, most reverend brethren, in weighing patiently what Christ intended when He established the ministry of His Gospel. When this has been done, more will follow as God wills in His own good time.

God grant that, even from this controversy, may grow fuller knowledge of the truth, greater patience, and a broader desire for peace, in the Church of Christ the Saviour of the world!

F. CANTUAR: WILLELM: EBOR: Dated on Friday the 19th day of February A.D. 1897.

APPENDIX.—THE CASE OF JOHN GORDON.

John Gordon, whose case we discussed briefly in chapter VII, was consecrated Bp. of Galloway in the south of Scotland in Glasgow Cathedral in 1688. He followed King James II into exile, was afterwards received into the Roman Church, and was baptised afresh conditionally. He took in addition to his own Christian name that of Clement, who was then Pope. Gordon, as is well known, asked Clement in a petition or memorial, which is still extant,³⁸ that he might take orders according to the Roman rite. There is no need to go through all the arguments of his petition. It is enough to say that they are very far remote from the truth. Their basis is the fable about Archbishop Parker's consecration. Concerning the matter, form, and intention he writes: "They use no matter, unless it be the delivery of the Bible, nor any lawful form: indeed they have cast aside the Catholics' form and changed it into this: "Receive the power of preaching the word of God, and of ministering His holy Sacraments," which is essentially different from the orthodox forms. And what intention can they possibly conceive who deny that Christ or the early Church instituted any unbloody sacrifice?" He takes no account of the truer matter and form employed among us, namely, the laying on of hands and the words "Receive the Holy Ghost," and all that then as now preceded and followed them. We do not know what prompted Gordon to commit this great fault. It was then on this petition, which only touched the form of the ordination of presbyters, that Clement XIth judged the case: and those, who had only known the history from the book of Michel Le Quien, naturally believed that he had simply judged according to Gordon's views. But the fact was really different, as is clear from the Statement prefixed to the decree, which Estcourt printed as late as the year 1873, and which has been strangely overlooked in this controversy, and from the letter of Pope Leo XIIIth, who writes:—"And in order that the judgment concerning this form might be more certain and complete, precaution was taken that a copy of the Anglican Ordinal should be submitted to examination." The Statement, after first reciting the date of the consecration and similar facts, proceeds:—"The action was performed generally (fere) as follows. First, prayers were said according to the Anglican Liturgy. Secondly, a sermon was delivered to the

people about the dignity and office of a Bishop. Thirdly, the said John knelt down and all the aforesaid pseudo-bishops laid their hands on his head and shoulders, saying, Take the Holy Ghost, and remember that thou stir up the grace which is in thee by imposition of hands: for we have not received the spirit of fear, but of power and love and of soberness. Fourthly, after a few short prayers by way of thanksgiving, the action was terminated." Then follows the form of Decree which, in its earlier part, differs considerably from that supplied by Le Quien, though it does not contradict it. The copy of the Statement and Decree given in Estcourt's book issued from the holy

³⁸See Le Quien Nullity &c. vol. ii, App. pp. lxx—lxxv, Paris 1725, to which the Decree of the Holy Office is appended. Cp. E. E. Estcourt The question of Anglican Ordinations discussed (Lond. 1873) App. xxxvi, pp. cxv foll., who also printed a different Statement of the case and another form of the Decree that follows with some care. The royal charter for the consecration is dated 4 Feb. 1688 (subsequent to the election) and sealed 4 September; the Statement gives 19 September as the date of the consecration.

Office 2 April, 1852, and is witnessed by Angelo Argenti, notary of the said Office, so that it may be held to be a genuine document. The judicious reader will note first, that the form of episcopal consecration alone is quoted here, though Gordon in his petition only referred (however untruly) to the form used in the ordination of presbyters. Hence a question at once arises, whether the holy Office accepted Gordon's assertions on that subject as true, or not? If it believed them true, its judgment based on such a falsehood is worthless: if it believed them false, why did it not make more accurate statements about that form? Secondly, he will observe that the form here quoted is not that which was used, at least in England, in 1688, but the earlier one of 1550 and 1552. For it does not contain the words added in 1662—for the Office and Work of a Bishop in the Church of God, now committed unto thee, &c.: and the words are said to be uttered by all the consecrators. Further the form was compared so carelessly that grace was substituted for grace of God and we have not received for God hath not given us (2 Timothy i 7, as in St. Jerome's version). Thirdly, the description of what took place agrees in fact neither with the earlier books nor with the later. For laying on of hands on the "shoulders" is nowhere ordered in our Ordinals; and many things, like the presentation, the examination, the hymn *Veni Creator*, are passed over in silence. But what is said under the fourth head in the Statement is simply untrue. For after the words Take (or Receive) the Holy Ghost, &c., follows the delivery of the holy Bible, with the second imperative form, Give heed unto reading exhortation and doctrine, &c. Then the Lord's Supper is celebrated, and lastly, in 1550 and 1552 there followed a single collect (Most merciful Father, we beseech thee to send down upon this thy servant), to which a second (Prevent us, O Lord) was added in 1662, together with the blessing (The peace of God which passeth). The "few short prayers by way of thanksgiving" do not occur at all. Further, the sermon is not ordered in the books of 1550 and 1552, but first appears in the Ordinal of 1662, though it is probable that one was delivered. This comparison then of the Anglican Ordinal, whatever book was used, at least as far as it can be judged by the Statement, was most careless, and perhaps did not extend to the ordination of

presbyters. Certainly, whatever the reasons may have been, it says nothing about it. Lastly, we do not know what to say about the omission to mention the fact of the delivery of the Bible in the consecration of a Bishop. The words "was performed generally as follows" seem to point to a carelessness, which must be called culpable considering the seriousness of the case. So far we have drawn our information from documents already known. But the Pope now adds, from the secret archives, it would seem, of the holy Office, something which was unknown to us before: "in the delivery of the decision this reason (i.e. the Consecration of Parker) was altogether set aside, as documents of incontestable authenticity prove," and immediately afterwards, "nor was weight given to any other reason than the defect of form and intention." What, we ask, are these "documents of incontestable authenticity," what defects of form and intention, and if any, of what kind, do they record? Are they defects in the consecration of a Bishop? or perhaps, in the ordination of presbyters? or in both? These points are of the greatest importance if the matter is to be fairly judged. The Pope it is true argues that this judgment of Clement "was in no wise determined by the omission of the tradition of the instruments," and adds the reason that "in such a case, according to established custom the direction would have been to repeat the Ordination conditionally." This argument is both in itself weak, and also seems to prove that the documents in question really say nothing about the kind of defect, since it is only conjecturally inferred. We may further ask, whether the custom was really then established. For the cases cited of the years 1604 and 1696 do not concern the omission of the ceremony, but the delegation of presbyters by the ordaining bishop to deliver the instruments (*Le Quien* ii pp. 388—394). Again in 1708, when a certain Capuchin happened to

get ordained with the porrection of the paten but without the Host on it, the Congregation of the Council decreed that the whole ordination must be conditionally repeated as though it were settling some new point.³⁹ In this year there was no question of the omission of the whole ceremony but only of a part of it. The question of the omission of the entire ceremony was apparently raised afterwards, “when one that was to be ordained Priest, although he had received all the customary impositions of hands by the Bishop, yet failed to go forward to where the Bishop stood holding out to him the usual instruments of the Paten with the Host, and of the Chalice with the Wine, because his mind was wandering.” For Benedict XIVth, in his book *On the Diocesan Synod* first published at Rome in 1748, writes that “Before we put the last touches to this book, this question was debated in the sacred

Congregation of the Council” (Bk. VIII, ch. x). He does not mention the year, but it must have been a considerable time after Gordon’s case; and even then the question did not arise from a deliberate, but from a casual, omission of the ceremony. If then about 1740 the Congregation of the Council could debate upon the repetition of ordination on this account, and decide not without long deliberation, it would seem, that it was to be repeated “conditionally,” the custom was scarcely an established one in 1704. But the Statement and Decree of the holy Office, at any rate according to the interpretation put forth by the Pope, can scarcely be reconciled with another document, which is said to have issued from that body eight or nine days before,⁴⁰ of which the significant part was printed as No. 1170 in the *Collectanea* of the Propaganda in 1893. We refer to the reply about the ordinations of the Monophysite Abyssinians⁴¹ in which approval is plainly given to some very careless ordinations of presbyters, effected only by a touch of hand and the word *Receive the Holy Ghost*, with no other

matter or form whatever, except perhaps what is contained in a prayer which is entirely silent about the priesthood. We see that this document is now called by some “the mere votum of a

³⁹See P. Gasparri *Canonical Treatise on Ordination* sec. 1084 (vol. ii p. 261, Paris, 1894). A similar case of another Capuchin, a subdeacon, was settled by the same Congregation 10th Jan., 1711: See *Treasury of Resolutions* vol. ix pt. 2, p. 165.

⁴⁰See for the Abyssinian rite at that time Job Ludolf’s *Commentary on his Hist. of Aethiopia* pp. 323—8 Frankf. o. M. 1691. The questions raised as to these ordinations and the reply of “the Consultors of the Supreme Inquisition” were first made public as far as we know, in the time of Benedict XIVth, by Filippo da Carbognano (1707—1762), a Franciscan, Professor at the Roman College of the Propaganda, in his *Appendices* to Paul G. Antoine’s *Universal Moral Theology*, which were published at Rome, in 1752 (p. 677 foll.), and often elsewhere, e.g. Venice 1778 (in. I, p. 172), Turin 1789 (v p. 501 sq.), Avignon 1818 (v p. 409). What Gasparri writes (in his *Canonical Treatise on Ordination* No. 1057 Paris 1893) about the *Appendices* to Concina’s *Moral Theology* is not clear to us. On the Abyssinian case see E. E. Estcourt, *The question of Anglican ordinations discussed* (London 1873), *Appendices* xxxiii, xxxiv and xxxv, where the formulas of the Coptic and Abyssinian ordinations, the resolutions of the holy Office of the years 1704 and 1860, and the letter (24 Nov., 1867) of Louis P. J. Bel, Bishop of S. Agata de’ Goti and Vicar Apostolic of Abyssinia, are printed. See also P. Gasparri *Canonical Treatise on Ordination*, sec. 1057-8, who adds the letter written by Cardinal Patrizi, Secretary of the Congregation of the holy Office, to Cardinal Manning, dated 30th April, 1875. Cp. also *Revue Anglo-Romaine* tom. i pp. 369—375 (1896) from which we quote the *Collectanea*, and A. Boudinhon in *Le Canoniste Contemporain* t. xx pp. 5—10 Paris 1897, who adds some things lately published at Rome. F. da Carbognano dates the reply Thursday, 10th April, and is followed by Manning, and Patrizi makes no objection. The reply of 1860 and the *Collectanea* mention 9th April.

⁴¹We add here the Abyssinian form of ordaining a presbyter published by Ludolf in 1691, *Commentary on Hist. Æth.* p. 328:— “My God, Father of our Lord and Saviour Jesus Christ, regard this thy servant, and bestow on him the spirit of grace and the counsel of holiness, that he may be able to rule thy people in integrity of heart; as thou regardedst thy chosen people, and commandedst Moses to elect elders, whom thou filledst with the same spirit with which thou endowedst thy servant and thy attendant Moses. And now, my Lord, give to this thy servant the grace which never fails, continuing to us the grace of thy spirit, and our sufficient portion; filling our heart with thy religion, that we may adore thee in sincerity. Through etc.” The form given by Bp. Bel (Estcourt p. cxiii) differs very little.

consultor,” and is as far as possible repudiated. But it is plain that some such answer was given at that date; for we read in the reply of the holy Office of 1860, “Let the answer of this Congregation of the Supreme Inquisition, given Wednesday, 9th April, 1704, be made (to the question).” Then follows the answer published by Roman theologians, which is now repudiated. And Cardinal Patrizi, secretary of this Congregation, minimized the force of this document to the best of his power in 1875, using the words of P. Franzelin (afterwards Cardinal), though not publishing all he wrote. If this reply then is true and genuine, we may ask whether the holy Office did approve of our form for ordination of presbyters, and only disapprove that for the consecration of a Bishop? We are quite ignorant: but it is not wholly incredible.⁴² If it is false and forged, where on earth has the true one vanished? and why has the false so long and so publicly taken its place? And who hereafter can believe that the holy Office is an adequate witness in such a controversy, or even on the character of its own documents? For these reasons we may justly say that the darkness in which the holy Office is enveloped is insufficiently dispersed by the Pope’s letter. The documents are preserved in the keeping of the holy Office and ought to be published if the interest of historical truth is to be consulted. As things stand, however, everyone must judge that the case of Gordon is an insecure and unstable foundation for anyone to rely upon who wishes to prove our orders null on account of the practice of the Roman Court.

Notes of the 1897 edition not anchored above

1. Sess. xxiii. On the Sacrament of Order, Canon I, where a certain power of consecrating and offering is claimed for the priesthood together with one of remitting and retaining sins. Cp. ib. Chap. i. See below Chaps. xv and xix.

27. This word is left untranslated.

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⁴²Gasparri believes that Paul the IVth approved our ordinations as regards presbyters and deacons: On the value of English Ordinations pp. 14, 15, 45, Paris 1895. Cp. above p. 13.